

SUPPLEMENTAL NOTICE OF DEDICATORY INSTRUMENTS
for
COLUMBIA LAKES HOMEOWNERS ASSOCIATION

THE STATE OF TEXAS §
 §
 COUNTY OF BRAZORIA §

The undersigned, being the authorized representative for Columbia Lakes Homeowners Association ("Association"), a property owners' association as defined in Section 202.001 of the Texas Property Code, hereby supplements instruments entitled "Instrument to Record Dedicatory Instruments", "Instrument to Record Dedicatory Instruments" and "Supplemental Notice of Dedicatory Instruments for Columbia Lakes Homeowners Association" recorded in the Official Public Records of Real Property of Brazoria County, Texas under Clerk's File Nos. 2005062032, 2013023207 and 2020075991 (the "Notice") was filed of record for the purpose of complying with Section 202.006 of the Texas Property Code.

1. Other Dedicatory Instrument. In addition to the Restrictive Covenants identified in the Notice, the following document is a Dedicatory Instrument governing the Association which was previously recorded in the Official Public Records of Real Property of Brazoria County, Texas:
 - a. Documents:
 - (1) Amended and Restated By-Laws of Columbia Lakes Homeowners Association, Inc.
 - b. Recording Information:
 - (1) Brazoria County Clerk's File No. 2021015059.
2. Additional Dedicatory Instrument. In addition to the Dedicatory Instruments identified in the Notice, the following document is a Dedicatory Instrument governing the Association.
 - a. Amended and Restated Bylaws of Columbia Lakes Homeowners Association.

[The attached document was properly adopted in the open session of the October 14, 2024 meeting of the Association Board of Directors and supersedes any previously recorded versions.]

A true and correct copy of such Dedicatory Instrument is attached to this Supplemental Notice.

This Supplemental Notice is being recorded in the Official Public Records of Real Property of Brazoria County, Texas for the purpose of complying with Section 202.006 of the Texas Property Code.

Executed on this 24th day of October, 2024.

COLUMBIA LAKES
HOMEOWNERS ASSOCIATION

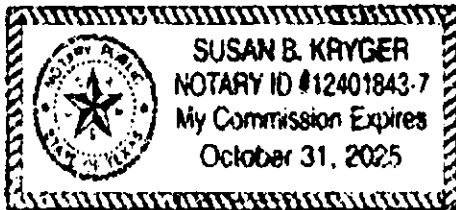
By: 

Cliff Davis, authorized representative

THE STATE OF TEXAS §
 §
COUNTY OF HARRIS §

BEFORE ME, the undersigned notary public, on this 24th day of October, 2024 personally appeared Cliff Davis, authorized representative for Columbia Lakes Homeowners Association, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that he executed the same for the purpose and in the capacity therein expressed.


Notary Public in and for the State of Texas



**AMENDED AND RESTATED BYLAWS
OF
COLUMBIA LAKES HOMEOWNERS ASSOCIATION**

Article I

Name, Membership, Definitions, Applicability and Membership

Section 1. **Name.** The name of the Association is Columbia Lakes Homeowners Association (hereinafter referred to as the "Association").

Section 2. These Bylaws replace and supersede any and all previous Bylaws adopted by the Association including, but not limited to, the Bylaws filed at Clerk's File Nos. 2005062032 and 2021015059 in the Official Public Records of Real Property of Brazoria County, Texas.

Section 3. **Declaration.** "Declaration" as used in these Bylaws shall mean the restrictive covenant documents referred to in the Association's current Management Certificate filed in the Official Public Records of Real Property of Brazoria County, Texas for each subdivision under the jurisdiction of the Association.

Section 4. **Definitions/Gender.** All capitalized terms used in these Bylaws shall have the same meanings as those set forth in the applicable Declaration unless otherwise provided. Pronouns, wherever used in these Bylaws, shall include all persons regardless of gender.

Section 5. **Applicability.** These Bylaws are applicable to the Columbia Lakes Homeowners Association. All present or future Members, Owners, and their employees, guests, tenants, residents, or other persons that use Association facilities in Columbia Lakes Homeowners Association or any property owned by or under the jurisdiction of the Association (the "Common Area") in any manner are subject to the terms and provisions of these Bylaws.

Section 6. **"Board of Directors" or "Board".** "Board of Directors" or "Board" as used in these Bylaws shall mean the Association's Board of Directors.

Section 7. **Director.** "Director" as used in these Bylaws shall mean a member of the Association's Board of Directors.

Section 9. **Certificate of Formation.** "Certificate of Formation" as used in these Bylaws shall mean the Association's Articles of Incorporation, as amended, if any.

Section 9. **Member.** "Member" as used in these Bylaws shall mean those persons entitled to membership in the Association as provided in the Declaration and/or all Owners.

Section 10. **Owner.** "Owner" as used in these Bylaws shall mean the record owner(s), whether one or more persons or entities, of fee simple title to a Lot under the jurisdiction of the Association, including executory contract sellers, but excluding those having such interest merely as security for the performance of an obligation.

Article II

Association: Meetings, Quorum, Voting, Proxies

Section 1. Member Meetings. Meetings of the Association will be held at the principal office of the Association or at such other suitable place as may be designated by the Board or will be held in such other manner as allowed by law (including, but not limited to, conference telephone or similar communications equipment, videoconferencing technology or the internet) and approved by the Board. No business shall be transacted at a meeting of the Members except as stated in the Member meeting notice.

Section 2. Annual Meeting of the Members. The annual meeting of the Association and the election for the Board of Directors will be held in October or November of each year on a date, at a time, and at a place designated by the Board. No business shall be transacted at the annual meeting except as stated in the annual meeting notice.

Section 3. Special Meetings of the Members. Special meetings of the Members may be called at any time by the President of the Board. In addition, it shall be the duty of the President to call a special meeting of the Association if so directed by vote of a majority of a quorum of the Board or upon a petition signed by Members representing at least ten percent (10%) of the total votes of the Association. When a special meeting is requested by at least ten percent (10%) of the Members, the request must include the proposed purpose of the special meeting. When a special meeting of the Members is called by the President, the Board or at least ten percent (10%) of the Members, the Board shall set the date, time, and place of the special meeting.

When a special meeting is requested by at least ten percent (10%) of the Members: (a) the Board shall cause the notice of the special meeting to be given within thirty (30) business days of receipt of the request; and (b) the special meeting must be held within sixty (60) days of the date the Board receives the special meeting request. The notice of any special meeting will state the date, time, and place of such meeting and the purpose thereof. No business shall be transacted at a special meeting except as stated in the special meeting notice.

Notwithstanding any language to the contrary in these Bylaws, if the purpose of a special meeting called for by petition of at least ten percent (10%) of the Members is unlawful or requests a Member vote on a matter that is in the purview of the Board's authority under the Declaration, these Bylaws, or state law, the Board is not required to call the special meeting. Members may not schedule a special meeting of the Association as provided in this section; however, the Board is obligated to schedule the special meeting of the Association upon the submission of a petition in accordance with this section unless the petition is unlawful or requests a Member vote on a matter that is in the purview of the Board's authority under the Declaration, these Bylaws, or state law.

Section 4. Notice of Member Meetings. It will be the duty of the Secretary or the Association's management agent if so directed by the Board, to send to each Member written notice of each annual or special meeting of the Association stating the purpose of the meeting, as well as the time and place where it is to be held. Such notice will be delivered by regular mail, however, the Association may, if agreed upon by both the Board and the Member, provide notice in any method authorized by statute. All meeting notices will be sent to the Member's address last appearing on the books of the Association. If a Member desires that notice be given at an address other than the Lot or wants to change the Member's meeting notice address, the Member must provide the alternative address for the purpose of receiving notice in writing to the Secretary or to such other party as designated by the Board. For an election or vote to be taken at a meeting of the

Members, notice will be served not less than ten (10) nor more than sixty (60) days before the meeting. If mailed, the notice of a meeting will be deemed to be delivered when deposited in the United States mail, first class postage pre-paid, addressed to the Member. If sent by electronic message, the notice will be deemed to be delivered when the electronic message is transmitted [See Texas Business and Organizations Code Section 6.051(b)(2)]. The Board may use any other means to deliver a notice of a meeting that may become available with advancements in technology, provided that notice by such means is authorized by statute and approved by the Board. The Association is not required to provide notice to a Member other than by regular mail. The Board may designate the management agent as the party responsible for sending meeting notices.

Section 5. Waiver of Notice. Waiver of notice of meeting of the Members will be deemed the equivalent of proper notice. Any Member may, in writing, waive notice of any meeting of the Members, either before or after such meeting. Attendance at a meeting by a Member, whether in person or by proxy (if applicable), will be deemed waiver by such Member of notice of the time, date, and place thereof, unless such Member specifically objects to lack of proper notice at the time the meeting is called to order. Attendance at a special meeting will also be deemed waiver of notice of all business transacted at such meeting unless objection to the calling or convening of the meeting is raised before the business (of which proper notice was not given) is put to a vote.

Section 6. Quorum. Except as otherwise provided in these Bylaws or in the Declaration, the presence in person or by proxy (if applicable) of at least ten percent (10%) of the total votes of the Association as of the time of the meeting will constitute a quorum at all meetings of the Association at which a Member may cast a vote. Once quorum is established at a meeting, all properly noticed business may be conducted even if the number of Members present in person or by proxy (if applicable) falls below quorum during the meeting.

Notwithstanding any language to the contrary herein:

- a. If there is no vote of the Members to be conducted at a Member meeting, the quorum requirement for the Member meeting shall be the number of Members who attend the meeting in person and/or the number of Members who either listen to or view the Member meeting by electronic or virtual means.
- b. The quorum required to approve annual meeting minutes shall be the number of Members attending the annual meeting in person and approval of the annual meeting minutes requires the approval of a simple majority of those Members present in person at the annual meeting. In the event that the annual meeting is held virtually, a copy of the previous year's annual meeting minutes will be provided to the Members with the annual meeting notice or made available for Member review in such other manner approved by the Board and, unless a Member submits to the Association in writing: (a) an objection to the annual meeting minutes, a basis for the objection, and a proposed amendment to cure the objection (which may be approved by the Board at the virtual annual meeting); or (b) a proposed amendment to the annual meeting minutes which may be approved by the Board at the virtual annual meeting, the previous year's annual meeting minutes as submitted to the Members will be deemed approved by the Board. The Board may also make any corrections it deems necessary to a previous year's annual meeting minutes and approve same at a virtual annual meeting. There is no quorum requirement for approval of annual meeting minutes by

the Board at a virtual meeting shall be the number of Members who either listen to or view the Member meeting.

- c. If a vote of the Members (including the election of Directors) is held by: (i) absentee ballot voting only; or (ii) electronic voting only; or (iii) by a combination of absentee ballot and electronic voting only, and no in person or proxy voting is allowed for the vote, no minimum number of votes must be cast and the quorum requirement to hold the Member meeting to announce the results of the vote and conduct the meeting shall be the number of Members who attend the meeting in person and/or the number of Members who either listen to or view the Member meeting by electronic or virtual means.
- d. The quorum requirement to hold a Member meeting to place a candidate(s) on the Board in the event of an uncontested election shall be the number of Members attending the meeting either in-person or virtually.

Section 7. No Quorum/Adjournment of Member Meetings/Reduced Quorum. If any meeting of the Association cannot be held because a quorum is not present, either in person or by proxy (if applicable), the presiding officer may adjourn the meeting and reconvene at a time not more than thirty (30) days from the time the original meeting was called. The reconvened meeting may take place on the same date as the originally called meeting. If the date, time and place for reconvening the meeting is fixed by the presiding officer at the time of adjournment, further notice of the time and place for reconvening the meeting is not required to be given to the Members. If the date, time and place for reconvening the meeting is not fixed by the presiding officer at the time of adjournment, notice of the date, time and place for reconvening the meeting will be given to Members in the manner prescribed herein for a first called meeting.

At such reconvened meeting, any business which might have been transacted at the meeting originally called may be transacted without further notice provided that: (a) at least five percent (5%) of the total votes of the Members as of the date of the meeting are present in person and/or by proxy (if applicable); and, (b) with the exception of the election of Directors, any action taken must be approved by at least a majority of the votes cast by the Members present, in person and/or by proxy (if applicable), at such reconvened meeting, unless otherwise provided in these Bylaws or in the Declaration.

Section 8. Member Meeting Agenda. The Board shall set the agenda for all meetings of the Members in its sole and absolute discretion.

Section 9. Voting (See also the section titled "Voting/Voting Procedure for the Election of Directors" in Article III of these Bylaws). The voting rights of the Members will be as set forth in the Declaration; provided that, all Members shall have the right to vote in the election of Directors. Except as otherwise provided in these Bylaws and/or unless otherwise determined by the Board, Members may vote in person or by proxy (if applicable) or, upon approval by the Board, by any other voting method allowed by statute or these Bylaws. The Board will, in its sole and absolute discretion, determine what voting method(s) will be used in the election of Directors or other Association vote. Per Texas Property Code Section 209.00592 (or its successor statute), the Association is not required to provide a Member with more than one voting method.

Each Member is entitled to one vote for each Lot owned by the Member. There will be no fractional votes, split votes, or cumulative voting. The vote of one Owner of a Lot will constitute the vote cast for all Owners of the Lot. In no event will more than one vote be cast with regard to

one Lot. If the Owners of a Lot casts a vote in a conflicting manner, the vote for that Lot is void. Notwithstanding any other language in these Bylaws, the Board is authorized to determine that an election vote or other vote of the Members will be conducted solely by: (a) electronic voting; or (b) absentee ballots; or (c) a combination of both electronic voting and voting by absentee ballot. Electronic voting by the Owners will be treated as voting by absentee ballot for the purposes of these Bylaws and the Texas Property Code.

Section 10. Required Vote. With the exception of the election of Directors (See Article III), or a Member meeting at which the reduced quorum requirement is in effect, the approval of a simple majority of the votes cast by the Members voting shall be an act of the Members, unless otherwise provided by statute or by these Bylaws or by the Declaration.

Section 11. Absentee Ballots. Notwithstanding any other language in these Bylaws, a majority of the Board may, but is not required to, authorize the use and implementation of an absentee ballot in any election or other Association wide vote that it deems appropriate. If absentee ballots are the only voting method authorized by the Board for an Association wide vote, said ballots shall be prepared and mailed to the Members at least twenty (20) days before the latest date on which a ballot may be submitted to be counted. Completed ballots must be returned to the Association in accordance with the instructions contained on the ballot. Per Texas Property Code Section 209.00592 (or its successor statute), an absentee ballot shall be counted as a Member present and voting for the purpose of establishing a quorum only for items appearing on the ballot. If utilized, absentee ballots must be signed by at least one Owner of the Lot. A Member shall not assign the Member's right to sign an absentee ballot to a third party. If used, absentee ballots must be returned in accordance with the instructions from the Association. It is prohibited for a candidate, owner, resident, or any other person to gather absentee ballots to submit to the Association. Absentee ballots received after the deadline to return absentee ballots shall not be counted in any Member vote (including the election of Directors).

Section 12. Tabulation of Ballots. All ballots for an Association election or vote shall be tabulated in accordance with Section 209.00594 of the Texas Property Code (or its successor statute). The Board may designate the Association's management agent to oversee and/or participate in the tabulation of ballots. Per Texas Property Code Section 209.00594(c), only a person who tabulates votes or performs a recount under Texas Property Code Section 209.0057 may be given access to ballots cast in an election or vote. If the election is held outside of a meeting and there are no volunteers to tabulate ballots, the ballots may be tabulated by employees of the Association's management company or such other persons as designated by the Board. **Per Texas Property Code Section 209.00594(b-1) (or its successor statute), a person who tabulates votes may not disclose to any other person how an individual voted.**

Section 13. Proxies. Notwithstanding any other language in these Bylaws, the Board is not required to allow voting by proxy for an Association election or vote. If utilized, all proxies shall be in writing and filed with the Secretary or other designated person at or before the meeting at which proxies will be utilized. Every proxy shall be revocable and shall automatically cease upon: (a) conveyance by the Member of the Member's interest in a Lot; (b) receipt of notice by the Association of the death or judicially declared incompetence of a Member; (c) receipt of written revocation; or (d) expiration of eleven (11) months from the date of the proxy. In the event a Member executes more than one (1) proxy, the proxy with the most current date shall be valid. If a Member executes more than one (1) proxy and none of the proxies are dated, all proxies submitted by that Member shall be invalid. The Board may announce for any vote or any meeting at which proxies are to be utilized a deadline for accepting proxies. Proxies not delivered or submitted prior to the announced deadline, if any, shall not be valid and shall not be counted for

quorum or any other purpose. Only the proxy approved by the Board and distributed by the Association shall be valid at any meeting of the Members at which proxies are utilized. If utilized, proxies may be submitted to the Association in person, by email, by mail, by delivery, by photograph sent by electronic means or by any other method approved by the Board. The Board may also allow proxies to be filed with or delivered to the Association's management agent. A Member may only appoint either another Member or the Member's spouse as the Member's proxy holder and proxies shall be voted only by another Member of the Association or a Member's spouse.

Section 14. Conduct of Member Meetings. The President will preside over all meetings of the Association and the Secretary, or another person designated by the Board, will keep the minutes of the meeting. The Board, with the approval of the President, may designate the Association's management agent to preside at meetings and/or keep meeting minutes. If the President is unable or unwilling to preside at a meeting, the Board may designate another member of the Board or the Association's management agent to preside at a meeting.

Section 15. Member Action Without a Member Meeting. To the extent allowed by applicable law, any action which may be taken or is required to be taken at a meeting of the Association may be taken without a meeting if written consent is signed by Members holding the number of votes necessary to approve the action at a meeting. The written consent must: (a) set forth the action to be taken; and (b) be executed by the required number of Members as of the effective date set forth in the written consent. Any written consent adopted in accordance with this section will have the same force and effect as a unanimous vote of the Members. The Board may also act between meetings as authorized by Texas Property Code Section 209.0051(h) or its successor statute.

Section 16. Member Meeting Rules and Regulations. The Board may, in its sole and absolute discretion, adopt rules and regulations regarding how meetings of the Members will be conducted.

Article III

Board of Directors: Number, Powers, Meetings

Section 1. Governing Body: Composition. The affairs of the Association shall be governed by a Board of Directors. Each member of the Board has one (1) vote. Each Director must be a Member of the Association. No more than one (1) representative of a particular corporation or other entity that is a Member may serve on the Board at any given time. Any Director who ceases to be a Member of the Association is immediately ineligible to serve on the Board and is automatically considered removed from the Board. A person is not eligible to serve on the Board if the person has been convicted of a felony or crime involving moral turpitude within the previous twenty (20) years and there is written, documented evidence of such a conviction from a database or other record maintained by a governmental law enforcement authority. Per the Texas Property Code, a person is not eligible to serve on the Board if the person cohabits at the same primary residence with another Board member of the Association. If persons who cohabit are elected to the Board in the same election, the person with the most votes will serve on the Board and the other person(s) is disqualified from serving on the Board.

Section 2. Number and Term of Directors. The Board is currently comprised of six (6) positions, each serving a three (3) year term. As of the conclusion of the year 2025 election, the Board shall be comprised of seven (7) positions, unless the number of positions on the Board is increased or decreased by amendment to these Bylaws. At the 2025 election of Directors, there shall be: (a) three (3) positions up for election, each for a three (3) year term; and (b) one position

up for election for a two (2) year term). There shall be three (3) Board positions up for election at the year 2026 annual meeting. Beginning with the 2025 election of Directors, the term of each Director elected by the Members shall be three (3) years. The Association shall not have less than three Board positions in accordance with Texas Business and Organizations Code Section 22.204(a) or its successor statute. Beginning with the 2025 election, the term of each Director shall expire at the annual meeting held in the third year after the year in which the Director is elected or, if the election is held outside of a meeting, when the election results are announced in the third year after the year in which the Director is elected. If the election of Directors is conducted outside of a meeting: (a) the election results shall be announced no later than three business days after the date by which votes must be cast; and (b) the deadline for votes to be cast shall be determined by the Board but in no event shall be earlier than October 1 or later than November 30. Any reduction in the number of positions on the Board cannot result in a sitting Director's position whose term has not expired from losing a position on the Board.

Section 3. Candidates for Election to the Board. All Members have the right to run for a position on the Board subject to the disqualifying factors in Article III, Section 1 of these Bylaws. Each year, prior to the date of the annual meeting of the Members or election for the Board and in the time prescribed by law, the Association will solicit candidates for the Board in accordance with Texas Property Code Section 209.00593 (or its successor statute). The notice will specify a date by which a Member must submit his/her name as a candidate for election to the Board. The date for a Member to submit his/her name as a candidate may not be earlier than the tenth (10th) day after the date the Association provides the solicitation notice. The notice may be mailed to each Member or provided by: (a) posting the notice in a conspicuous manner reasonably designed to provide notice to the Members in a place located on the Association's Common Area or, with the owner's consent, on private property located within the Association; or (b) on an Internet website maintained by the Association, and by sending notice by e-mail to each Member who has registered an e-mail address with the Association.

The Association must be notified by the Member who desires to run for a position on the Board, not by another Member, to confirm the Member's desire to run for election and to serve on the Board. Unless otherwise disqualified from service as allowed by law, all Members who notify the Association by the stipulated deadline will be candidates whose names will appear on any ballot and/or directed proxy (if applicable) that is provided to the Members.

A candidate may submit a one letter size page, one side printed only document with resume and/or biographical information to the Association by the specified date. If provided by the candidate, the candidate's resume/biographical information may, in the sole and absolute discretion of the Board, be provided to the Members at any pre-election candidate forum, and/or provided with the notice of annual meeting provided to all Members, and/or be made available on the Association's website, and/or be made available at the election meeting (if applicable). The Association may also promulgate a candidate information form to be completed by each candidate in a Board election. If the Association promulgates a candidate information form, only the Association's candidate information form shall be provided to the owners if so determined by the Board. If candidate resumes/biographical information and/or the candidate information form are distributed to or made available to the Members in any manner, the Association will, subject to the page limitation set by the Board, provide all resume/biographical information and/or candidate information forms provided by all candidates that were submitted in accordance with this section unless, in the sole and absolute discretion of the Board, the submitted documentation includes offensive content.

Section 4. Nominations from the Floor/Write-In Candidates. Nominations from the floor at an election meeting (if applicable) of the Members are not required and will be allowed at the discretion of the Board. If the Board allows nominations from the floor at an election meeting of the Members, the meeting notice will state that nominations from the floor will be accepted. There shall not be nominations from the floor in an election that is not conducted at an in-person meeting. There shall not be write-in candidates for the election of Directors. If a qualified Member desires to run for a position on the Board, the Member must submit the Member's name in response to the solicitation of candidates in order for the Member's name to be placed on the ballot.

Section 5. Nominating Committee. The Board is not required to establish a Nominating Committee. If appointed by the Board, the Nominating Committee will: (a) consist of a Chairman, who will be a member of the Board, and one or more Members of the Association (which Committee members may also be Board members); (b) be appointed by the Board at any time prior to each annual meeting of the Members and will serve until the close of the annual meeting; and (c) will make as many nominations for election to the Board as it shall in its discretion determine. The Board may, but is not required to, designate candidates approved by the Nominating Committee on any ballot or directed proxy (if applicable) disseminated by the Association.

Section 6. Voting/Voting Procedure for the Election of Directors (See also the section titled "Voting" in Article II of these Bylaws). Unless the election is conducted solely by absentee ballot (or a combination of absentee ballot and electronic voting) outside of a meeting as provided in these Bylaws, the election of the Board will be conducted at the annual meeting of the Association or in such other manner allowed by law and approved by the Board. At such election, each Member, or the Member's proxy holder (if applicable) may cast, with respect to each vacancy, as many votes as the Member is entitled to exercise under the provisions of these Bylaws and the Declaration. Unless otherwise determined by the Board, voting for Directors shall be by written and signed ballots.

Only the ballot approved by the Board shall be used in the election of Directors. In the event of an uncontested race (i.e., the number of candidates is equal to or less than the number of open Board positions), written and signed ballots shall not be required, and the candidate(s) shall be placed on the Board without the necessity of a vote. Cumulative voting is not permitted. The candidate(s) receiving the most votes shall be elected to the open position(s). If the terms of the open Board positions are not the same, the candidate(s) with the most votes shall fill the longer term(s). The winning candidate(s) shall take office at the later of the conclusion of the Member meeting at which the Director was elected or, if the election results are not announced at a Member meeting, when the election results are announced.

Tie votes between two persons shall be decided by coin toss. In the event of a tie vote between three or more persons, the vote shall be decided by placing the names of the persons in a container and drawing a name(s). The name(s) drawn first shall be declared the winner. The resolution of all tie votes shall be overseen by the Association's Secretary or by such other person designated by the Board. The Board may designate the Association's managing agent to oversee the resolution of tie votes.

Notwithstanding any other language in these Bylaws, if the election for the Board is conducted solely by electronic voting or by absentee ballots (or a combination of both): (a) no minimum number of votes is necessary for the election of Directors; and (b) the candidate(s) receiving the most votes shall be elected to the open position(s) and shall take their place on the Board when the election results are announced.

If multiple voting methods are allowed the election of Directors, or for any other vote of the Members, and a Member votes by more than one method, a vote cast by a Member in person at an election meeting (if applicable) shall prevail over a vote cast by any other type of voting method. A vote cast by electronic voting (if applicable) shall prevail over any other voting method except an in-person vote cast at a Member meeting. A vote cast by an absentee ballot (if applicable) shall prevail over a proxy (if applicable) signed by a Member. If in-person voting is not offered as a voting method, a Member is prohibited from and shall not change the Member's vote once the vote is cast.

In the event that voting for the election of Directors has begun in any manner and a candidate(s) withdraws from the election or otherwise becomes unable to continue as a candidate in the election: (a) Owner voting shall continue as if the candidate in question did not take part in the election; (b) any vote(s) cast for the candidate in question shall not be counted; (c) the Association may, but is not obligated to, take action(s) to attempt to notify the Owners that a candidate(s) has withdrawn from the election or is otherwise unable to continue as a candidate; and (d) an Owner who voted for the candidate in question shall not be able to change the Owner's vote unless in-person voting is offered as a voting method. Notwithstanding any language to the contrary herein, the Board may also, in its sole absolute discretion, cancel the election in which the candidate(s) withdrew or otherwise became unable to continue as a candidate in the election and provide notice (in accordance with these Bylaws and applicable state law) of a new vote of the Owners with the name of the candidate(s) in question not included on any ballot or directed proxy (if applicable).

Section 7. Resignation from the Board. A member of the Board may resign from the Board at any time by giving written notice (including e-mail notice) to the Board, the Board President, the Secretary, or the managing agent (who must then forward the resignation notice to the remaining Board members). Such resignation shall take effect on the date of the receipt of such written resignation notice whether or not the resignation notice purports to state that the Board member is resigning as of a later date. The acceptance of such written resignation is not necessary to make the resignation effective.

If a Director orally resigns his or her position on the Board and then refuses to give written notice of the resignation after being requested to do so in writing (including an e-mail request) by any other current Board member, the Board may: (a) if the Director in question does not attend the next Board meeting in the capacity of a Director for any reason, note the oral resignation in the minutes of the next Board meeting at which time such oral resignation shall be effective; or (b) accept the oral resignation by a writing signed and dated by at least a majority of the remaining Board members (who do not have to sign the written acceptance on the same date), in which case the resignation is effective as of the date it is signed by at least a majority of the remaining Board member(s).

Section 8. Vacancies on the Board. A vacancy on the Board arising because of death, resignation, removal or otherwise shall, unless otherwise determined by the Board, be filled by a majority of the remaining Directors though less than a quorum or, when applicable, by a sole remaining Director. Any Director so appointed shall hold office for the unexpired term of the Board position to which s/he was appointed. If by reason of death, resignation, or otherwise, the Association has no Directors in office, any Member of the Association may call for a meeting of Members for the purpose of electing a Board.

Section 9. Removal of Directors. Any Director may be removed from the Board, with or without cause, by the affirmative vote of a simple majority of the Members voting in person or by proxy (if applicable) at a special meeting called for that purpose, at an annual meeting for which the removal of a Director(s) is on the meeting notice, or by any other voting method allowed by law and approved by the Board.

If the vote to remove a Director(s) is held at an in-person meeting of the Members: (a) quorum must be obtained at the meeting for the vote to be valid; and (b) any Director(s) whose removal is proposed must be given the opportunity to be heard at the meeting; and (c) notice that a vote to remove a Director(s) must be included in the meeting notice.

If the vote to remove a Director(s) is held outside of a Member meeting (for example, not by way of limitation, if the Board approves the vote to be conducted by absentee ballot voting and electronic voting), at least ten percent (10%) of the total votes of the Association must be cast for the vote to be valid.

The Director(s) shall be considered removed from the Board if, once quorum is obtained, a simple majority of the votes cast are in favor of removal.

Notwithstanding any other language in these Bylaws, any provision regarding a reduction in the quorum requirement is not applicable to a meeting and/or a vote to remove a Director.

If the Board is presented with written documented evidence from a database or other record maintained by a governmental law enforcement authority that a Board member was convicted of a felony or crime involving moral turpitude not more than 20 years before the date the Board is presented with the evidence, the Board member is immediately ineligible to serve on the Board and shall, therefore, be immediately considered removed from the Board.

Any Director may be removed by a vote of at least a majority of the remaining Directors as the result of the Director's failure, without just cause, to attend three (3) consecutive meetings of the Board (whether regular or special Board meetings). The failure of a Director to appear at a scheduled Board meeting that results in quorum not being obtained shall count as a Board meeting for the purpose of determining if the Director has failed to attend three (3) consecutive Board meetings. "Just cause" means any event that, in the reasonable, good faith judgment of at least a majority of the Board, prevents a Director from attending a meeting and includes, without limitation, death or serious injury to a member of the Director's family or other person with whom the Director has a long-term relationship, a mental or physical ailment or impairment that prevents the Director from attending a meeting, and any mandatory business engagement related to the Director's livelihood and/or employment.

A Director shall be automatically considered removed from the Board with no further action necessary on the part of the Board or the Association if the Director refuses to comply with any federal and/or state mandated requirements for Board members including, but not limited to, compliance with the federal Corporate Transparency Act. Prior to the automatic removal, the Association, acting through any current Board member, the Association's management agent, if any, or the Association's legal counsel, shall give the non-complying Board member written notice (which includes email) that the non-complying Board member has seven business days to comply with the applicable state and/or federal law. The non-complying Board member shall be considered removed from the Board as of the date the non-complying Board member is provided written notice (which includes email) from the Association, acting through any current Board member,

the Association's managing agent, if any, or the Association's legal counsel, that the Board member has failed to comply with the applicable state and/or federal law.

In the event of the removal of a Director under this section, a successor for the removed Director(s) shall, unless otherwise determined by the Board, be appointed by a majority of the remaining Directors or, if applicable, by the sole remaining Director.

The Board may initiate a Member vote to remove a Director(s) pursuant to this Section 9 by a Board vote held in the open session of a properly noticed Board meeting or by a Board email vote.

The Members may initiate a Member vote to remove a Director(s) pursuant to this Section 9 by calling for a special meeting of the Members pursuant to Article II of these Bylaws for the purpose of removing a Director.

Section 10. Recount of Votes. Any Member may request a recount of the votes of an election or other Association wide vote. A request for a recount must be submitted not later than the 15th day after the date of the meeting of the Members at which an election or vote was held or the date of the announcement of the results of the election or vote if no meeting was held. For purposes of this section, the term "submitted" will mean the date on which the recount request is deposited in the mail or delivered in person in accordance with the requirements of this section. A demand for a recount must be submitted in writing either:

- a. by verified mail to the Association's mailing address as reflected on the last recorded management certificate; or
- b. in person to the Association's management agent as reflected on the last recorded management certificate or to the address to which absentee ballots and proxy ballots (if applicable) were mailed.

The Association must estimate the costs for performing a recount by a person qualified to tabulate votes as set forth below and must send an invoice for the estimated costs to the Member requesting a recount to the Member's last known address according to the Association records not later than the 20th day after the date on which the Association received notice of the request for a recount. The Member demanding a recount must pay such invoice in full on or before the 30th day after the date the invoice is sent to the Member. If the Member does not timely pay the invoice, the demand for recount is considered withdrawn and a recount is not required. If the actual costs are different than the estimate, the Association will send a final invoice to the Member on or before the 30th business day after the date the results of the recount are provided. If the final invoice includes additional amounts owed by the Member, any additional amounts not paid to the Association before the 30th business day after the date the invoice is sent to the Member may be added to the Member's account as an assessment. If the estimated costs exceed the final invoice amount, the Member is entitled to a refund. The Association will issue a refund to the Member not later than the 30th business day after the date the invoice is sent to the Member.

Only after payment is received, the Association shall, at the expense of the Member requesting the recount, retain the services of a qualified person to perform the recount. The Association will enter into a contract for the services of a person who is not a Member of the Association or related to a member of the Board of the Association within the third degree by blood or marriage and is a:

- a. current or former county judge;

- b. current or former county elections administrator;
- c. current or former justice of the peace;
- d. current or former county voter registrar; or
- e. person agreed on by the Association and each Member requesting the recount.

A recount must be performed on or before the 30th day after the date of receipt of the payment for the recount. The Association shall provide each Member who requested the recount with notice of the results of the recount. If the recount changes the results of the election/vote, the Association shall reimburse the Member for the cost of the recount not later than the 30th day after the date the results of the recount are provided. Any action taken by the Board in the period between the initial vote tally and the completion of the recount is not affected by the recount.

Section 11. Regular Board Meetings. Regular meetings of the Board may be held at such time, date, and place as will be determined from time to time by a majority of the Directors. The frequency of regular meetings will be as deemed necessary and appropriate by the Board or as otherwise required by the applicable governing documents. Notice of each regular meeting will be given to all Members as required by law. The Board may participate in and hold a regular or special meeting by means of:

- a. conference telephone or similar communication equipment by which all persons participating in the meeting can hear each other; or
- b. another suitable electronic communications system, including video conferencing technology or the Internet, only if:
 - i. each Director entitled to participate in the meeting consents to the meeting being held by means of that system; and
 - ii. the system provides access to the meeting in a manner or using a method by which each Director participating in the meeting can communicate concurrently with each other participant;
 - iii. all Directors may hear and be heard by every other Director;
 - iv. except for any portion of the meeting conducted in executive session, all Members in attendance at the meeting may hear all Directors and Members are allowed to listen using any electronic or telephonic communication method used or expected to be used by a Director to participate; and
 - v. the notice of the meeting includes instructions for Members to access any communication method required to be accessible under subsection iv above.

Participation in a meeting by conference telephone or similar communication or video conferencing technology or the internet will constitute presence in person at such meeting and waiver of any notice requirement except where a Director participates in the meeting for the express purpose of objecting to the transaction of any business on the grounds that the meeting is not lawfully called or convened.

Section 12. Special Meetings of the Board of Directors. Special meetings of the Board will be held when called by the President or by a majority of the Directors then in office. The notice will specify the date, time, and place of the meeting and the nature of any special business to be considered. The notice may be given to each Director by any one of the following methods: (a)

by personal delivery; (b) written notice by first class mail, postage prepaid; (c) by facsimile, or (d) by email. All such notices will be given or sent to the Director's address, email, or facsimile number as shown on the records of the Association. Notices sent by first class mail will be deposited into a United States mailbox, at least three (3) days before the time set for the meeting. Notices given by personal delivery, email, or facsimile will be delivered or given at least three (3) days before the time set for the meeting. The provisions in Article III of these Bylaws regarding Notice of Board Meetings are applicable to a special meeting of the Board.

Section 13. Waiver of Notice of a Board Meeting. Notice of a Board meeting (whether a regular or special meeting) will be deemed to have been properly given to any Director who attends the meeting without protesting before or at its commencement about the lack of adequate notice thereof.

Section 14. Notice of Board Meetings to the Members. The Board shall give Members notice of the date, hour, place, and general subject of a regular or special meeting of the Board, including a general description of any matter to be brought up for deliberation in closed executive session.

The notice for a regular meeting of the Board must be either:

- a. mailed to all Members at least ten (10) days [but not more than sixty (60) days] before the date of the meeting; or
- b. provided at least 144 hours before the start of the regular meeting by:
 - i. posting the notice in a conspicuous manner reasonably designed to provide notice to the Members, either in or on a Common Area or, with the owner's consent, on conspicuously located privately owned property within the Association, or on the Association's website; and
 - ii. emailing the notice to all Members who have registered their email address with the Association.

The notice for a special meeting of the Board must be either:

- a. mailed to all Members at least ten (10) days [but not more than sixty (60) days] before the date of the meeting; or
- b. provided at least 72 hours before the start of the special meeting by:
 - i. posting the notice in a conspicuous manner reasonably designed to provide notice to the Members, either in or on a Common Area or, with the owner's consent, on conspicuously located privately owned property within the Association, or on the Association's website; and
 - ii. emailing the notice to all Members who have registered their email address with the Association.

It is a Member's responsibility to register and keep an updated email address with the Association.

Section 15. Quorum of Board of Directors. At all meetings of the Board, a majority of the Directors then in office shall constitute a quorum for the transaction of business, and the vote of a majority of the Directors present at a meeting at which a quorum is present shall constitute the decision of the Board.

A meeting at which a quorum is initially present may continue and business may be transacted notwithstanding the withdrawal of Directors during the meeting if any action taken is approved by

at least a majority of the required quorum for that meeting. For example, if five (5) Board members are initially present and one (1) Board member withdraws from the meeting, the requirement for the Board to make a decision is still four (4) Board members voting in favor of an item in order to constitute a decision of the Board.

If a meeting of the Board cannot be held because a quorum is not present, the President (or other presiding officer of the meeting) may adjourn the meeting and reconvene at a time not less than five (5) days and not more than thirty (30) days from the time the original meeting was called. If a time and place for reconvening the meeting is fixed by those Board members in attendance at the original meeting, further notice of the time and place for reconvening the meeting is not required to be given to the Directors or the Members. If a time and place for reconvening the meeting is not fixed by those in attendance at the original meeting or if for any reason a new date is fixed for reconvening the meeting after adjournment, notice of the time and place for reconvening the meeting will be given to the Directors and Members in the manner prescribed by law. At such reconvened meeting, whether or not a quorum is present, any business which might have been transacted at the meeting originally called may be transacted without further notice, provided that any action taken must be approved by at least a majority of the Directors required to constitute a quorum at the original meeting. For example, if five (5) Board members are present on the originally called meeting date but only four (4) Board members are present at the reconvened Board meeting, the requirement for the Board to make a decision is still four (4) Board members voting in favor of an item in order to constitute a decision of the Board.

Open or vacant Board positions shall not be counted when determining quorum for a meeting of the Board.

Section 16. Compensation/Director Contracts. No Director shall receive any compensation from the Association for acting in such capacity. However, Directors may be reimbursed for out-of-pocket expenses incurred on Association business. Directors may receive compensation from the Association when taking action at the request of the Association other than in the capacity of Director, however, the Association must comply with Texas Property Code Section 209.0052 before entering into a contract with a Director.

Section 17. Conduct of Board Meetings. The President will preside over all meetings of the Board and the Secretary, or such other Director and/or management agent, if any, or office staff as the Board may designate, will keep Board meeting minutes recording all decisions made or actions taken by the Board and any other information that the Board believes necessary. If the President is unwilling or unable to preside at a Board meeting, then the Secretary or such other Board member as designated by a majority of the Board will preside at the Board meeting. The Board may, with the President's approval, designate the management agent, if any, or office staff to preside over the Board meeting.

Section 18. Open Board Meetings. All meetings of the Board shall be open to all Members, but Members other than Directors shall not participate in any discussion or deliberation unless expressly so authorized by a majority of a quorum of the Board. If a Member unreasonably disrupts a meeting of the Board or repeatedly interrupts the discussion between Directors, the Board shall have the authority, after an initial warning, to cause that Member to be removed from the meeting. A Board meeting may be held by electronic or telephonic means provided that: (a) each Director may hear and be heard by every other Director; (b) all Members in attendance at the meeting may hear all Directors (except if adjourned to executive session); and (c) all Members are allowed to listen using any electronic or telephonic communication method used or expected to be used by a Director to participate.

Section 19. Board Meeting Executive Session. The Board may adjourn a regular or special Board meeting and reconvene in a closed executive session to consider actions involving personnel, pending, or threatened litigation, contract negotiations, enforcement actions, confidential communications with the Association's attorney, matters involving the invasion of privacy of individual Members, and matters that are to remain confidential by request of the affected parties and agreement of the Board. Following an executive session, any decision made in executive session must be summarized orally and placed in the minutes, in general terms, without breaching the privacy of individual Members, violating any privilege, or disclosing any information that was to remain confidential at the request of the affected parties. The oral summary must include a general explanation of expenditures approved in executive session. If the executive session is held at the end of a properly noticed Board meeting, the oral summary of the actions taken in the executive session may be presented at the next properly noticed Board meeting.

Section 20. Board Action Outside of Board Meeting. The Board may take action outside of a meeting, including voting by electronic or telephonic means, without prior notice to Members, if each Board member is given a reasonable opportunity to express the Board member's opinion to all other Board members and to vote. The vote of a majority of the Directors under this provision will constitute the decision of the Board. Any action taken without notice to Members under this section must be summarized orally, including an explanation of any known actual or estimated expenditures approved at the meeting, and documented in the minutes of the next regular or special Board meeting. The Board may not, unless done in an open meeting for which prior notice was given to all Members in accordance with state law, consider or vote on:

- a. fines;
- b. damage assessments;
- c. initiation of foreclosure actions;
- d. initiation of enforcement actions, excluding temporary restraining orders or violations involving a threat to health or safety;
- e. increases in assessments;
- f. levying of special assessments;
- g. appeals from a denial of architectural control approval;
- h. a suspension of a right of a particular Owner before the Owner has an opportunity to attend a Board meeting to present the Owner's position, including any defense, on the issue;
- i. lending or borrowing money;
- j. the adoption or amendment of a dedicatory instrument;
- k. the approval of an annual budget or the approval of an amendment of an annual budget;
- l. the sale or purchase of real property;
- m. the filling of a vacancy on the Board;
- n. the construction of capital improvements other than the repair, replacement, or enhancement of existing capital improvements; or
- o. the election of an officer.

Section 21. Board Authority. The Board of Directors is responsible for the affairs of the Association and has all of the powers necessary for the administration of the Association's affairs. The Board of Directors may take all actions and do all things on behalf of the Association unless otherwise provided in the Declaration, the Association's Certificate of Formation, or these Bylaws.

The Board of Directors has the authority, but not the obligation, unless otherwise required by law or the Association's Dedicatory Instruments [as that term is defined in Section 202.001(1) of the Texas Property Code], to do the following (by way of explanation, but not limitation):

- a. Prepare and adopt an annual budget.
- b. Provide for the operation, care, upkeep, and maintenance of all of the Common Area including establishing rules and regulations governing the use of the Common Area and establishing fines and/or penalties for the infraction thereof including, but not limited to, suspending a Member's right (or a tenant's right) to use the Common Area to the extent allowed by law.
- c. Designate, hire, and dismiss the personnel necessary for the operation of the Association and for the maintenance, repair, and replacement of Association property and, where appropriate, provide for the compensation of such personnel and for the purchase of equipment, supplies, and material to be used by such personnel in the performance of their duties.
- d. Collect the assessments and other charges authorized by the Declaration and/or the Association's Dedicatory Instruments and/or state law, depositing the proceeds thereof in a bank depository and using the proceeds to administer the Association.
- e. Make and amend rules, regulations, and policies for the Association.
- f. Adopt, establish, and amend from time to time at the discretion of the Board, a fine schedule and/or fine policy for any infraction of the Association's Dedicatory Instruments.
- g. Open bank accounts on behalf of the Association and designating the signatories required.
- h. Make, or contract for the making of repairs, additions, and improvements to, or alterations of the Common Area in accordance with the other provisions of the Declaration and these Bylaws, after damage or destruction by fire or other casualty.
- i. Unless otherwise prohibited by state law or the Declaration, borrow money for the purpose of maintenance, repair, or restoration of the Common Areas or for any other proper purpose without the approval of the Members of the Association. The Board, on behalf of the Association, may pledge the Association's Assessments and assign the Association's lien rights as collateral for any loan obtained by the Board on behalf of the Association.
- j. Enforce, by legal means, the provisions of the Declaration, these Bylaws, all Association rules, regulations, and policies adopted by the Association, and all other applicable Association Dedicatory Instruments, and bring any proceeding which may be instituted on behalf of the Association.
- k. Suspend a Member's right (or a tenant's right) to use Common Area during any period in which such Member: (i) has failed to pay an assessment (or any portion thereof) or any other charge (or any portion thereof) authorized by the Association's Dedicatory Instruments or state law; or (ii) has failed to pay or reimburse the Association for the

actual cost to repair any damage to Association Common Area or to any other real or personal property that the Association maintains that is caused by the Member or the Member's guest(s), tenant(s), invitee(s), etc.; or (iii) or such Member's family member(s), guest(s) or tenant(s) has violated the Association's Dedicatory Instruments and the Member has been notified of such violation in writing by the Association.

- l. Obtain and carry insurance against casualties and liabilities, including directors' and officers' liability insurance, and paying the premium cost thereof.
- m. Pay the cost of all services rendered to the Association or its Members and not directly chargeable to Members.
- n. Keep books with detailed accounts of the receipts and expenditures affecting the Association and its administration, specifying the maintenance and repair expenses and any other expenses incurred. All books and records will be kept in accordance with generally accepted accounting practices and will be available as required by Texas law.
- o. Provide, upon request, information to Members, mortgagees, and prospective purchasers of Lots concerning, by way of example and not limitation, the status of the Association, the status of payment of assessments and related charges on a Lot, and the status of compliance with the provisions of the Declaration and the Association's Dedicatory Instruments. The Association may charge a fee for providing such information.
- p. Charge a "transfer fee" when changing the records of the Association upon the transfer of title to a Lot.
- q. Issue, or cause to be issued, upon demand by a Member or by a Member's representative at the time of the sale or refinance of a property under the jurisdiction of the Association, a statement setting forth what charges, if any, are due and owing to the Association. The Association may charge a fee for the issuance of such statement. The Association may authorize a third party to provide such statement and the Member is responsible to pay the fee of the third party.
- r. Adopt policies and procedures deemed necessary and appropriate for the administration of the Association and the conduct of the Directors and officers of the Association, the employees of the Association, if any, and persons serving on behalf of the Association in volunteer capacities.
- s. Charge to a Member and place on the Member's assessment account the actual cost to repair any damage to Association Common Area or to any other real or personal property that the Association maintains that is caused by the Member or the Member's guest(s), tenant(s), invitee(s), etc.
- t. Unless otherwise provided by the Association's Certificate of Formation or Declaration, acquire by gift, purchase, own, hold, improve upon, build, enjoy, operate, maintain, convey, sell, lease, transfer, mortgage, dedicate for public use, or otherwise dispose of, real or personal property in connection with the business of the Association.

- u. Exercise any other power as authorized or allowed by the Association's Dedicatory Instruments or state law.

Section 22. Management Agent. Unless otherwise provided by the Declaration, the Board may, but is not required to, employ for the Association a professional management agent or agents, or manager, at a compensation rate established by the Board, to perform such duties and services as the Board shall authorize.

Article IV

Officers

Section 1. Officers. The officers of the Association will be the President, Vice President, Secretary and Treasurer. All officers must also be Directors. The Board may select, appoint and/or remove such other officers as it shall deem appropriate, such officers to have the authority to perform the duties prescribed by these Bylaws and/or the duties prescribed from time to time by the Board. All officers must also be Directors.

Section 2. Multiple Offices. Any two or more offices may be held by the same person except the offices of President and Secretary in accordance with Texas Business and Organizations Code Section 22.231(a).

Section 3. Election of Officers, Term of Office, and Vacancies. The officers of the Association should be elected annually from within and by the Board at the first meeting of the Board held (or such election shall occur no later than the second meeting of the Board) after the Board election. A vacancy in any office arising because of death, resignation, removal, or otherwise may be filled by the Board. All officers serving at the time of the Board election (not including those Board members whose terms expired) shall hold their office until their successor is elected.

Section 4. Officer Removal. Any officer may be removed by a majority vote of the Board whenever in its judgment the best interests of the Association will be served thereby. The Board may fill any vacant officer position in the open session of a properly noticed Board meeting.

Section 5. Officer Powers and Duties. The officers of the Association will each have such powers and duties as generally pertain to their respective offices, as well as such powers and duties as may from time to time be specifically conferred or imposed by the Board. The chief executive officer of the Association will be the President. The Treasurer will have primary responsibility to oversee the preparation of the budget, and, with the approval of the Board, may delegate all or part of the preparation and notification duties to a finance committee or a management agent.

Section 6. Resignation of an Officer. Any officer may resign his or her office at any time by giving written notice (including e-mail notice) to the Board, the President, the Secretary, or the Association's management agent. Such resignation will take effect on the date of the receipt of such notice or at any later time specified therein. The acceptance of such resignation by the Board is not necessary to make the resignation effective.

If a Director orally resigns his or her office and then refuses to give written notice of resignation after being requested to do so in writing (including an e-mail request), the Board may, if the Director in question does not attend the next Board meeting in the capacity of the Director's officer position for any reason, note the resignation in the minutes of the next Board meeting at which time such oral resignation will be effective.

Section 7. Agreements, Contracts, Deeds, Leases, etc. All agreements, contracts, deeds, and leases of the Association will be executed by the President of the Association or, if the President is unwilling or unable to execute such document, by at least one (1) officer designated by the Board or by such other person or persons as may be designated by resolution of the Board. The Board may designate any officer of the Association to execute any other Association document.

Section 8. Officer Compensation. No officer may receive any compensation from the Association for acting in such capacity.

Article V

Committees

The Board is authorized to form committees as it deems necessary or as required by the Declaration. Committees are hereby authorized to perform such tasks and to serve for such periods as may be designated by the Board. Such committees will perform such duties and have such powers as directed by the Board. The size of each committee will be in the sole and absolute discretion of the Board. Unless otherwise provided by the Declaration, the Board has the authority to appoint and remove committee members, at any time with or without cause, in its sole discretion. The Board may, but is not required to, adopt committee rules or a committee charter for any committee formed under these Bylaws which rules or charter may describe, among other things, the function of the committee and the rules under which the committee will operate.

Article VI

Miscellaneous

Section 1. Fiscal Year. The fiscal year of the corporation will begin on the first day of January and end on the 31st of December of every year.

Section 2. Parliamentary Rules. Simple parliamentary procedure will govern the conduct of Association proceedings when not in conflict with Texas law, the Certificate of Formation, the Declaration, or these Bylaws.

Section 3. Conflicts. If there are conflicts or inconsistencies among the provisions of Texas law, the Declaration, the Certificate of Formation, these Bylaws, and/or any rules, regulations, or policies of the Association, the provisions of Texas law, the Declaration, the Certificate of Formation, these Bylaws, and the rules, regulations, or policies of the Association (in that order) will prevail.

Section 4. Books and Records. Books and records of the Association will be retained by the Association in accordance with the Association's Records Retention Policy (or similarly named document). Each Member or Member's designated representative will have a right to either inspect the requested books and records before obtaining copies or to have the Association forward copies of the requested books and records in accordance with the Association's Open Records Policy (or similarly named document). This provision does not require the Association to release or allow inspection of books and records that are not required by law to be released or inspected.

Section 5. Member's Mailing Address. It is the responsibility and obligation of each Member who owns a Lot under the jurisdiction of the Association to provide the Member's mailing address to

the Association and to promptly notify the Association in the event the Member's mailing address changes. In order to be effective, notice of the Member's mailing address or a change of the Member's mailing address must be mailed to the Association by any method of mailing for which evidence of receipt of such mailing by the Association is provided by the United States Postal Service or a common carrier. It is the Member's responsibility to maintain evidence of receipt by the Association of Member's notice of address change. The Association may, at its discretion, accept a notification of a change in a Member's mailing address sent by regular mail or e-mail, however, a Member that disputes the mailing address listed in the Association's records must be able to prove that the Member sent an address change notification by providing evidence of receipt by the Association of Member's notice of address change that was sent by any method of mailing for which evidence of receipt of such mailing by the Association is provided by the United States Postal Service or a common carrier. Unless the Association is otherwise notified in writing, the Member's mailing address shall be deemed to be the street address of the Member's Lot or the last alternative mailing address provided to the Association by the Member in writing. All notices to a Member pursuant to these Bylaws shall be mailed to the Member at the Member's last known mailing address as reflected in the records of the Association. If mail to a Member is returned undelivered, or the Association otherwise reasonably determines that the last known mailing address of the Member may not be valid, the Association has the right, but not the obligation, to conduct a title search or other searches for the purpose of attempting to either verify the Member's current mailing address or to obtain the Member's current mailing address. Any costs incurred by the Association to verify a Member's current mailing address or obtain a Member's current mailing address shall be, to the extent permissible under the Association's Dedicatory Instruments and state law, charged to the Member. The failure of a Member to receive a notice(s) or to properly notify the Association of a change in a Member's mailing address shall in no way waive or negate the Member's obligation to pay any Assessment or charge(s) authorized by the Declaration or state law. The submission of a check or other form of payment to the Association which sets forth an alternative address does not constitute notice of a change of the Member's mailing address.

Section 6. Audit. An audit of the accounts of the Association will be performed by a qualified, independent certified public accountant as frequently as deemed necessary by the Board. Each audit will be in accordance with generally accepted auditing standards to obtain reasonable assurance that the Association's financial statements are free of material misstatements, to assess accounting principles used, and to evaluate the overall financial statement presentation.

Section 7. Indemnification. The Association must indemnify a Director, officer or committee member who was, is or is threatened to be named as a defendant or respondent in a claim or proceeding to the extent indemnification is consistent with the Texas Business Organizations Code, as it now exists or may hereafter be amended.

Section 8. Invalidation. The invalidation of any term or provision of these Bylaws by a court of competent jurisdiction will not operate to void or otherwise invalidate the remaining terms and provisions hereof.

Section 9. Enforcement. The failure of the Board to enforce any provision or the Association's Dedicatory Instruments shall not be deemed a waiver of the right of the Board to do so thereafter.

Section 10. Business Judgment Rule. Any act or thing done by any Director, officer, or committee member taken in furtherance of the purposes of the Association and accomplished in conformity with the procedures set forth in the Declaration, the Certificate of Formation, the laws of the State of Texas, and these Bylaws, must be reviewed under the standard of the Business Judgment

Rule as established by the common law of Texas, and such act or thing done is not a breach of duty on the part of the Director, officer, or committee member if it was done within the exercise of the Director's, officer's, or committee member's discretion and judgment. The Business Judgment Rule means that a court may not substitute its judgment for that of the Director, officer, or committee member. A court may not re-examine the quality of the decisions made by the Director, officer, or committee member by determining the reasonableness of the decision as long as the decision is made in good faith in what the Director, officer, or committee member believes to be the best interest of the corporation.

Section 11. Amendment. These Bylaws may be amended by a majority vote of the Board pursuant to Section 22.102 of the Texas Business Organizations Code and the Association's Certificate of Formation.

FILED and RECORDED

Instrument Number: 2024045970

Filing and Recording Date: 10/24/2024 01:27:13 PM Pages: 24 Recording Fee: \$113.00

I hereby certify that this instrument was FILED on the date and time stamped hereon and RECORDED in the OFFICIAL PUBLIC RECORDS of Brazoria County, Texas.



A handwritten signature in black ink, appearing to read "Joyce Hudman".

Joyce Hudman, County Clerk
Brazoria County, Texas

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